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Case Number: 25STCV36974 Hearing Date: July 20, 2026 Dept: 732

Ryan Hamilton, et al. v. Volodymyr Artemenko, et al.

Monday, July 20, 2026

CASE NUMBER: 25STCV36974

OPPOSED

Defendants Top Fil

Distribution Corp. and Volodymyr Artemenko's Special Motion to Strike
(Anti-SLAPP)

Plaintiffs Ryan

Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's
Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice

Facts:

This is an action for breach of contract and fraud. The First Amended Complaint ("FAC") alleges as follows. Plaintiffs Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC ("Plaintiffs") entered into an agreement with Defendant Volodymyr Artemenko and Top Film Distribution Corp. ("Defendants") whereby the latter would provide financing for a feature film project owned by Plaintiffs in exchange for a set return on investment plus a share of the profits. (FAC ¶¶ 15–22.) While negotiating the agreement, Artemenko made representations concerning his finances and available funding sources to the

effect that he would be able to meet his film financing obligations without resort to outside sources. (Complaint ¶ 17.) These representations were false, as Artemenko's prior film company had gone bankrupt, he was personally liable for the debts thereof, and Defendants were not financially capable of complying with the agreement except by resort to third parties, whose funds Defendants in any event largely channeled to other obligations. (FAC ¶¶ 17–33.) Defendants eventually refused to comply with their funding obligations unless Plaintiffs surrendered their rights to the film. (Complaint ¶ 34.)

Procedural History: Plaintiffs

filed the Complaint on December 18, 2025, and filed the FAC on April 22, 2026, alleging five causes of action:

1.

Breach of Private Written Contract

2.

Fraud

3.

Intentional Interference with Economic Relations

4.

Negligent Interference with Economic Relations

5.

Intentional Interference with Contract

Plaintiffs

filed the present pro hac vice application on May 13, 2026.

Defendants

filed the present anti-SLAPP motion on May 8, 2026.

Plaintiffs

filed an opposition on June 4, 2026.

Defendants

filed a reply on June 9, 2026.

Analysis

I.

OBJECTIONS

Defendants Top Film Distribution Corp. and Volodymyr Artemenko ("Defendants") object to the opposition of Plaintiffs Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC ("Plaintiffs") on the grounds that it exceeds the 15-page limit of California Rules of Court ("CRC") Rule 3.1113, subd. (d). Plaintiffs' opposition indeed exceeds the 15-page limit for opposing memoranda (CRC Rule 3.1113, subd. (d), and omits required tables and summaries. (CRC Rule 3.1113, subd. (e).) "A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." (CRC Rule 3.1113, subd. (g).) But Plaintiffs' opposition, filed on June 4, 2026, was already late in relation to the June 16, 2026 hearing date scheduled when it was filed. (See Code Civ. Proc. § 1005, subd. (b); Code Civ. Proc. § 1010.6, subd. (a)(3)(A).) What's more, the opposition is filed and signed by an attorney not licensed to practice law in California, and whose application to appear pro hac vice in this matter only remains pending because of lack of any proof of service upon the California State Bar or payment of the requisite fee. (CRC Rule 9.40 (c)(1), (e); see Davis Test Only Smog Testing v. Department of Consumer Affairs (2017) 15 Cal.App.5th 1009, 1016 ["In a court of law, "an unlicensed person cannot appear ... for another person, and ... the resulting judgment is a nullity."].)

Under

these circumstances, Defendants' objection to Plaintiffs' opposition is SUSTAINED, and the court will not consider the opposition materials. But as explained below, Defendants' motion fails upon its own terms.

II.

anti-slapp motion

In 1992 the Legislature enacted Code of Civil Procedure section 425.16 as a remedy for the "disturbing increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of speech and petition for the redress of grievances." (Code Civ. Proc., §425.16, subd. (a); Wilcox v. Superior Court (1994) 27 Cal.App.4th 809, 817.) The lawsuits are commonly referred to as "SLAPP" lawsuits, an acronym for "strategic lawsuit against public

participation.” (Equilon Enterprises, LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 57, fn. 1.) A defendant opposing a SLAPP claim may bring an “anti-SLAPP” special motion to strike any cause of action “arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue” (Code Civ. Proc., § 425.16, subd. (b)(1).) An anti-SLAPP motion may be addressed to individual causes of action and need not be directed to the complaint as a whole. (Shekhter v. Financial Indemnity Co. (2001) 89 Cal.app.4th 141, 150.)

In ruling on an anti-SLAPP motion, a trial court uses a “summary-judgment-like procedure at any early stage of the litigation.” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 192.) This is a two-step process. First, the defendants must show that the acts of which the plaintiff complains were taken “in furtherance of the [defendant]’s right of petition or free speech under the United States of California Constitution in connection with a public issue.” (Code Civ. Proc., §425.16 subd. (b)(1).) Next, if the defendant carries that burden, the burden shift to the plaintiff to demonstrate a probability of prevailing on the claim. (Code Civ. Proc., § 425.16 subd. (b)(3).)

In making both determinations the trial court considers “the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.” (Code Civ. Proc., § 425.16, subd. (b)(2); Equilon Enterprises, supra, 29 Cal.4th at p. 67.)

1. Protected Activity

The anti-SLAPP statute defines protected activities as:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing

made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e),
emphasis added.)

Defendants Top Film

Distribution Corp. and Volodymyr Artemenko (“Defendants”) seek to strike the third and fourth causes of action for intentional and negligent interference with economic advantage from the First Amended Complaint (“FAC”) of Plaintiffs Ryan Hamilton, Adam Bramich, Shiver Film, LLC, and Zipline Films LLC (“Plaintiffs”).

Defendants argue that these claims, which are based on “inflammatory emails, texts and other communications” sent by them to certain of Plaintiffs’ contacts in the film industry, allegedly concerning their “incompetence as film producers, and . . . untrue allegations that Plaintiffs misappropriated funds” (FAC ¶¶ 65, 74), arise from “conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Motion at pp. 12–13; Code Civ. Proc. § 425.16, subd. (4).)

The sole basis upon which Defendants claim the claims at issue implicate protected activity is thus the anti-SLAPP statute’s “catchall” provision for conduct in furtherance of the exercise of constitutional free speech rights in connection with a public issue or issue of public interest.

The inquiry under the catchall provision . . . calls for a two-part analysis rooted in the statute’s purpose and internal logic. First, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech. (§ 425.16, subd. (e)(4).) Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest. It is at the latter stage that context proves useful.

(FilmOn.com Inc. v.

DoubleVerify Inc. (2019) 7 Cal.5th 133, 149–150.)

Defendants identify the “public issue” in their alleged comments as being the “Shiver” film whose production is the subject of the underlying action. (Motion at pp. 14–15.) Defendants present evidence that the film was planned as the adaptation of a bestselling book, as well as evidence that its troubled production garnered substantial media attention. (Motion at pp. 14–15; Hobbs Decl. Exh. A–J.)

Defendants

rely on the case *Ojeh v. Brown* (2019) 43

Cal.App.5th 1027. In that case, the plaintiff alleged that the defendants had solicited investment funds from the plaintiff to make a documentary about the Syrian refugee crisis, but had performed only insubstantial work on the documentary, had applied the funds toward other personal purposes, and had fraudulently induced the investment. (*Ojeh*, supra, 43 Cal.App.5th at pp. 1032–1034.) The trial court denied the defendant documentarian’s anti-SLAPP motion, reasoning that the complaint only targeted his failure to produce the documentary as agreed, not any protected conduct. (*Id.* at p. 1035.) But the appellate court reversed, reasoning that the complaint did not allege the defendant’s complete non-performance of the contract, but rather Plaintiff’s dissatisfaction with the “affirmative acts” that had been performed in creating the documentary. (*Id.* at p. 1039.) The court held that “affirmative acts in connection with an ultimately incomplete film can still be said to have furthered the exercise of defendants’ free speech rights.” (*Id.* at p. 1040.) The court held that both the work performed pursuant to the contract, and the defendant’s representations made to secure funding for the film, were “functionally related to the advancement of its message, as Brown’s declaration explained that funding was necessary for production, postproduction, promotion, and distribution of the film.” (*Id.* at p. 1044.) The court held, however, that the defendant’s “alleged use of the funds for purposes unrelated to the film . . . does not implicate protected activity, as such conduct would tend to hinder, not advance, production of the film.” (*Id.* at p. 1040, fn. 5.)

Ojeh

is distinguishable. Defendants are here sought to be liable not for any creative work associated with the “Shiver” film, or the solicitation of funds

therefore, but rather to have sent “inflammatory emails, texts and other communications” to film industry leaders concerning Plaintiffs’ “incompetence as film producers” including “untrue allegations that Plaintiffs misappropriated funds.” (FAC ¶¶ 65, 74.) Although discussion of the “Shiver” film arguably concerns a matter of public interest, given Defendants’ evidence that the film is based on a popular book series, no showing is made that the communications made by Defendants advanced “the public conversation” about the film. (FilmOn.com Inc., supra, 7 Cal.5th at pp. 149–150.) These statements are not alleged to have been made in a public forum or in the context of a public conversation, but in texts, emails, and other communications with Plaintiffs’ industry contacts. (FAC ¶¶ 65, 74; see FilmOn.com, Inc., supra, 7 Cal.5th at p. 153 [holding that publication of report concerning internet advertising suitability of particular sites “privately, to a coterie of paying clients,” were not made in connection with public issue where the report “never entered the public sphere, and the parties never intended it to.”].)[1]

Defendants appear to argue that any conversations concerning and affecting the production of a high-profile film constitutes speech in connection with a public issue. (Motion at pp. 16–17.) Other authorities foreclose this argument. In the analogous case of *Li v. Jenkins* (2023) 95 Cal.App.5th 493, the court addressed “whether conduct that occurred during the creation and development of a popular television series was “conduct in furtherance of the exercise of the constitutional right ... of free speech in connection with a public issue or an issue of public interest” within the meaning of the catchall provision of the anti-SLAPP (strategic lawsuit against public participation) statute.” (*Li v. Jenkins* (2023) 95 Cal.App.5th 493, 496.) The plaintiff there alleged that the defendants had breached contracts entitling her to certain roles as an executive producer on the show “by excluding and failing to [p]rovide [plaintiff] with the ability to fully perform services as an Executive Producer and specifically excluding her as an Executive Produce[r] and from inclusion in decisions and the ability to work or consult on the Program.” (*Id.* at p. 497.) The trial court denied the defendants’ anti-SLAPP motion, reasoning, “While Defendants demonstrate[] some public interest in the subject of the Program itself, Defendants do not show a functional relationship between the challenged conduct—the decision to exclude and not compensate Plaintiff as an Executive Producer on the Program—and any public interest in the Project or the Project’s themes.” (*Id.* at p. 499.) The appellate court affirmed the trial court’s denial, and distinguished *Ojeh*,

reasoning that the conduct at issue there was “directly related to the asserted issue of public interest [i.e. the Syrian refugee crisis] and were undertaken to contribute toward the public discourse on the matter.” (Id. at p. 502.)

The court rejected the defendants’ attempt to analogize their case to *Ojeh*:

Defendants say plaintiff’s claims “arise from [their] development and production” of the program, and their conduct “involves the parties’ discussions surrounding the creation of a television program.” Defendants say their decisions concerning who would be involved creatively in the program were “a necessary part” of the development and production of the program. We fail to see how a private decision not to compensate plaintiff, to exclude her from creative participation in, and to deny her credit for a television program “contributes to public discussion” of the Asian-American experience reflected in the program.

(*Li*, supra, 95 Cal.App.5th at p. 502.)

The situation is similar here. Defendants have not shown how mere texts, emails, and other communications to industry contacts made concerning Plaintiffs’ participation in the production of “*Shiver*” meaningfully advance the public discussion of the film. On an anti-SLAPP motion, “the moving defendant bears the initial burden of establishing that the allegations or claims “ ‘aris[e] from” protected activity in which the defendant has engaged.” (*Li*, supra, 95 Cal.App.5th at p. 499.) Defendants have failed to show that the allegations of the third and fourth causes of action arise from protected activity under Code of Civil Procedure § 425.16, subd. (e)(4), and advance no other basis upon which to argue the claims arise from protected activity. Defendants thus have failed to meet this burden.

Accordingly, the motion is DENIED.

I.

PRO

HAC VICE

“A person who is not a member of the State Bar of California but who is a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state . . . and who has been retained to appear in a particular cause pending in a court of this state, may in the discretion of such court be permitted upon written application to appear as counsel pro hac vice, provided that an active member of the State Bar of California is associated as attorney of record.” (Cal. Rules of Court (“CRC”) Rule 9.40(a).) An applicant may not be a resident of the State of California, regularly employed in the State of California, or regularly engaged in substantial business, professional, or other activities in the State of California. (CRC 9.40(a)(1–3.)

“A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office.” (CRC 9.40(c)(1).) Notice must be given sixteen days before the hearing.

“The application must state; (1) The applicant’s residence and office address; (2) The courts to which the applicant has been admitted to practice and the dates of admission; (3) That the applicant is a member in good standing in those courts; (4) That the applicant is not currently suspended or disbarred in any court; (5) The title of court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6) The name, address, and telephone number of the active member of the State Bar of California who is attorney of record.” (CRC 9.40(d)(1–6.) Additionally, a \$50 must be paid to the California Bar. (CRC 9.40(e).)

Plaintiffs Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC (“Plaintiffs”) bring the present application to admit R. Gale Porter Jr. as counsel pro hac vice. The application contains a declaration of Porter, who states that he is a resident of Florida with his office in Florida, and is a member in good standing of the Florida Bar, and not suspended or disbarred in any court. (Porter Decl. ¶¶ 1–7.) Porter is not a resident of California and has not previously sought pro hac vice admission in California courts. (Porter Decl. ¶¶ 8–9.)

This court previously continued hearing on the present application, noting that it lacked proof of service upon the State Bar at its San Francisco office, as required by CRC Rule 9.40, subd. (c)(1), or indication that the requisite fee has been paid. (CRC Rule 9.40, subd. (e); see California State Bar, "Pro Hac Vice," <<https://www.calbar.ca.gov/admissions/special-admissions/pro-hac-vice>>, as of June 2, 2026.) The court continued the matter again on June 16, 2026. No new proof of service has been filed, nor any indication that the fee has been paid.

The pro hac vice application is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 732

RYAN
HAMILTON, et al.,

Plaintiffs

v.

VOLODYMYR ARTEMENKO, et al.,

Defendants.

Case No.:
25STCV26439

Hearing Date: July 20, 2026

[TENTATIVE] RULING RE:

Plaintiffs

Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's
Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice

Defendants

Top Fil Distribution Corp. and Volodymyr Artemenko's Special Motion to Strike
(Anti-SLAPP)

Defendants

Top Film Distribution Corp. and Volodymyr Artemenko's Special Motion to Strike
(Anti-SLAPP) is DENIED.

Plaintiffs

Ryan Hamilton, Addam Bramich, Shiver Film, LLC, and Zipline Films, LLC's
Application to Admit R. Gale Porter Jr. as Counsel Pro Hac Vice is DENIED.

Plaintiffs to give notice.

Dated: July 20, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

The materials supplied by Plaintiffs in opposition contain examples of communications upon which they rely, largely communications from their partners and associates indicating (or implying, in Plaintiffs' inference) that they have been contacted by Defendants, and are no longer interested in working with Plaintiffs. (See Ryan Hamilton Decl. ¶¶ 7–10, 16–17, 19–21, 23, 25; Gary Hamilton Decl. ¶ 3; Bramich Decl. ¶¶ 9–10, 12, 13.) None of the communications offered demonstrate that Defendants were participating in a public discussion concerning the “Shiver” film. Defendants do not rely upon these communications in their reply materials concerning the protected activity inquiry, and considering them does not alter the conclusion that Defendants' fail to demonstrate that the third and fourth causes of action do not arise from protected activity under Code of Civil Procedure § 425.16, subd. (e)(4).